

FILM AND THE COPYRIGHT ACT OF NIGERIA: AN EVALUATION OF SELECTED NOLLYWOOD INFRINGEMENT CASES

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Abstract

The issue of copyright in film production, which primarily protects the economic and moral rights of creators and rights holders, has generated significant scholarly and industry debate in recent years. Despite the rapid growth and global recognition of Nigeria's film industry, there remains a relative scarcity of academic research examining film production within the framework of Nigerian copyright law. This study therefore investigates the legal regulations governing copyright in film production and critically evaluates the rights granted to owners of artistic works under Nigerian law. Anchored in the Equity-in-Incentive Theory of Intellectual Property, the research adopts a qualitative and doctrinal methodology, relying on textual analysis of statutory provisions, scholarly literature, and policy guidelines derived from Nigerian copyright legislation. The study examines the concept of filmmaking in relation to the idea-expression dichotomy and the eligibility of works for copyright protection, the scope of rights conferred on copyright owners, the legal requirements for establishing copyright infringement, and the remedies available under the law. In addition, the research analyzes three prominent Nollywood copyright disputes: Okafor's Law v. Jude Idada, Oloture v. Tobore Ovuorie, and Domitilla Remake v. Ann Njemanze. The findings reveal that, notwithstanding the vibrancy of the Nigerian film industry, persistent challenges relating to piracy and copyright infringement remain prevalent across socio-cultural and economic contexts. The study concludes that stronger legal awareness and compliance are essential within the industry. It therefore recommends that filmmakers and other creative professionals become more conversant with copyright regulations, including the rights, limitations, and exceptions contained in the Nigerian Copyright Act (As amended 2022)

Keywords: *Infringement, Nollywood, Copyright Act, Film, Equity Incentive Theory*

Introduction

Film production is an ensemble as it requires the collaboration of various artistic personnel and craft thus, according to Shraddha Sharma; “a film can be thought of as an aggregated work created by several artistic individual who have dedicated their careers to bringing a fictional work to life” (3). There is therefore a need to follow due process in the development of motion pictures as laws have been enacted to ensure the protection of these works and one of these is The Copyright Act of Nigeria as Babafemi Fowola opines that, “Copyright is a legal right enacted in the law that protects the owners of intellectual property from being exploited. The law protects indiscriminate copying and distribution of an author's (to mean producer of) work without the permission of the author” (2). Copyright is one of the two branches of Intellectual Property Law. This is the protection given to a particular Intellectual property like film and the act of infringing this copyright is referred to as piracy. The other branch relates to industrial

property, chiefly inventions, trademarks and industrial design.

The copyright law was governed in Nigeria by the English Copyright Act of 1911 which was made applicable to Nigeria by virtue of an Order-in-Council, under section 25 of the Act of 1911 of the Great Britain. Nigerian applied the 1911 Act until 1970 when it replaced it with the Copyright Act of 1970. This Act was inadequate as it could not combat the increasing rate of piracy and other infringements, coupled with the need to increase the penal sanctions and provide adequate remedial measures; hence the birth of the 1988 Act. In 1992 vide the Copyright was amended according to Decree No. 98 of 1992; the Act was amended once again in 2004, and subsequently in 2022. Therefore, Feather and Sturges asserts that, “this act refers to a legal concept that concerns right to copy, as it protects, the labour, skill and judgment that someone- author, artist or some other creator expends in the creation of an original piece” (22).

The Copyright Act through its entire gamut aims to appropriately reward the intellectual efforts of authors, especially in the commercial sense; ensure that all players within the creative industry are granted rights to protect their interest both commercially and otherwise. The rights empower owners of artistic works (Films and others) with rights to be sole owners of their works, aids copyright holders to take legal action against online infringement of works by users and distributors given the new trend of digital context ecosystem. To this end, Odunowo Tayo insist that, “awareness becomes necessary as the violation of copyright legislation can lead to loss of income, discourage creativity, retard industrial, economic and cultural growth and development” (55). Therefore, Copyright in film production refers to the legal protection of creative works, ensuring exclusive rights to the creator or owner.

Despite Nigeria's thriving film industry (Nollywood), Copyright infringement and intellectual property theft remain pervasive, threatening the creative and economic viability of film production. The Nigerian Copyright Act (2022) aims to protect author's rights, but inadequate enforcement, lack of awareness, and limited resources hinder its effectiveness however, despite all of these problems, there remain a paucity of research on film production in line with the Copyright Act of Nigeria, and this has made piracy and infringement cases rampant in the Nigerian Entertainment Industry. This research is thus motivated by the need to study film production in Nigeria, in line with the provisions of the law. The aim of this study is to investigate the extent to which the Copyright Act can be utilized in the production of movies within Nigeria.

This research is streamlined to the analysis of these Nollywood infringement cases; Omoni Oboli's *Okafor's Law* versus Jude Idada (2016), Mo Abudu's *Oloture* versus *Tobore Ovuorie* (2019), Zeb Ejiro's *Domitilla Remake* versus *Actress Ann Njemanze* (2021). The scope of this research includes a comprehensive analysis of the court ruling of these cases respectively, in reference to the Copyright Act of Nigeria as amended in 2022. By evaluating the aforementioned cases, the study addresses issues facing Nollywood in terms of copyright Infringement, its effects and how these cases can be properly dealt with by providing solutions to piracy in Nigeria. The lack of knowledge highlights the need for academic studies to give filmmakers and artistic personnel better guidance on film production in Nigeria in accordance to the law therefore, this research fills a significant gap in existing literature by thoroughly analyzing the effects of piracy on artistic originality, and the Nigerian film industry at large. This

study would also be beneficial to filmmakers who desire to be protected by the law while showcasing their arts. The researchers infuse the use of qualitative method drawing on textual source, journals, laws, in the actualization of this research topic, examining deeply The Copyright Act of Nigeria as Amended in 2022, Intellectual Property in Nigeria, Elements of film production and the Rights Conferred on Copyright owners. The research also uses “The Equity in Incentive Theory of the Intellectual property Law” to investigate and analyse the infringement cases of the following films. *Okafor's Law* (2016), *Oloture* (2019), and *Domitilla* (2021), were selected as case study through purposive random sampling.

The Equity in Incentive Theory of Intellectual Property Right

Copyright theories, with roots in law, philosophy and economics, contemplate the benefits that copyright ought to bestow, and how such benefits may be best derived. In essence, when and why should copyright be created, scope and limits of those rights and many other questions. This theory believes that incentives operate to stimulate creation of some artistic work by promising the power to prevent other similar works from being produced and distributed. In other words, creators have moral entitlements that the law should recognize and enforce, that is, to deny legal protection to creators would be unfair as Elen L. Ruthingham believes that:

The traditional view of incentive theory is that the author or producer of a creative work or invention is to be incentivized so as to encourage him for more creation. It further advocates the disclosure or dissemination of information which would encourage others to make more innovations or work ultimately benefitting the society by the development and progress of art (62).

It is upon this touchstone principle that the analyses of how far the incentive theory of copyright in intellectual property can be utilized in the various aspect of film production. Another variant of the Incentive approach is called “Equity”. Equity theory states that “each contributor to a collective enterprise deserves a share of the fruits of the enterprise proportionate to the magnitude of his or her contribution. John Locke a British philosopher derives from the intuitive appeal a story upon which this theory is hinged. A farmer finds a land owned by another, ploughs, removes the weed, plants and harvest crops and uses them to sustain him and family. It will therefore be unwise for an interloper who has done nothing to make the land productive to benefit from its proceedings. One may deduce that Locke's argument has even greater force when applied to works of the intellect (literature, art, film). The raw material used to generate a film (the script) has little value by far the most important input to the value of the finished film, is the script writer's intellectual labour and should be protected alongside the producer's artistic prowess. The Equity in Incentive theory of intellectual property right therefore states that, the ratio of contribution (or costs) and benefit (or reward) for each person should be proportionate to the amount of work done by the individual and that in order to maximize individual's rewards, systems should therefore be created where resources can be fairly divided amongst members of a film production group according to the law. It is upon this theory that the study is anchored on for the interpretation and evaluation of the case studies.

Review of the Copyright Act, 2022

Intellectual properties in Nigeria were protected by the copyright Act of Nigeria, 2004 before now. March 17, 2023, ushered in a new regime for the copyright space in Nigeria. The president

of the Federal Republic of Nigeria signed the Copyright Bill 2022 into law. The new Act introduces significant changes which will impact creative and further strengthen the exercise of their rights, particularly in a digital world. Some of these changes include; the recognition of digital copies of work, empowerment of the Nigerian Copyright Commission (“NCC” or “The Commission”) to effectively administer and enforces compliance of persons and entitles with the provisions of the Act, recognition of audio-visual works as eligible for copyright protection, tenure of moral rights, licensing of photography and arts, among others. Though the Act adopts most of the provisions contained under the “Old Act”, it introduces some notable provisions which are highlighted below:

1. The Act maintains the provisions of works eligible for copyright protection, albeit with some modifications. Notably, it replaces cinematography films with audio visual works. This is mainly seen as an improvement on the new Act, as the definition of cinematography films is inadequate to limits its application. However, audio-visual works cover a large scope and has been described as an electronic media possessing both a sound and a visual component; such as slide-tape programs, live theatre production, films, web streaming. The Act defines “audio-visual works” in Section 2, Part I, Subsection C of the 2022 Act as:

“the aggregate of a series of related visual images with or without sound, which is capable of being shown as a moving picture by means of a mechanical electronic or other device and irrespective of the nature of the material on which the visual images and sounds are carried and includes the soundtrack but does not include a broadcast”
(183)

2. In defining the conferment of copyright by reference to country of origin; the Act revises the provision that emphasizes domicile. The Act now confers copyright on a work if one of the producers amongst other things is a citizen of or is a habitually resident in Nigeria. Section 5, Part I, Subsection a-b states that:

(5) Copyright shall be conferred by this section on every work that is eligible, where the author or in the case of a work of joint authorship, any of the authors (to also mean “producer of”) is at the time when the work or a suitable part made is,

- a. An individual who is a Nigerian citizen or is habitually resident in Nigeria; or
- b. A body corporate incorporated by or under the laws of Nigeria
(184-185)

Section 6, Part I, Subsection a-c states that:

Copyright shall be conferred by this section on a work, which is,

- a. Literary, musical or artistic work or an audio-visual that is first published in Nigeria;
- b. Sound recording made in Nigeria and has not been the subject of any Copyright conferred by section 2 of this Act; or
- c. Broadcast transmitted from Nigeria or by a broadcasting organization that has its headquarters situated in Nigeria. (184-185)

This Act does away with complex requirement for citizenship by replacing it with habitual residency as seen above.

3. The Act clearly explains the issue of moral rights given to an author or producer. The Act lays this to rest by stating that moral rights will expire when the copyright in a work expires. Additionally, moral rights are now transmissible upon the author's or producer's death by testamentary disposition or by operation of law. This is evident in section 14, Part I, Subsection 1-4.
 - 14 - (1) Subject to Part II of this Act, the author of a work in which copyright subsists has the right to-
 - a. Claim authorship of his work, in particular that his authorship be indicated in connection with any of the act referred to in section 9-11 of this Act, except when the work is incidentally or accidentally included in a broadcast when reporting current events; and
 - b. Object and to seek relief in connection with any distortion, mutilation or other modification of, and any other derogatory action in relation to his work, where such action would be or is prejudicial to his honour or reputation.
 - (2) A person has the right to object to as work being falsely attributed to him as the author
 - (3) The rights referred to in subsection (1) shall-
 - a. Not be transmissible during the life of the author or; and
 - b. Upon the death of the author, be transmissible by testamentary disposition or by operation of law.
 - (4) The rights conferred by this section shall subsist for the duration of the copyright in the work. (187-188)
4. The Act allows persons who commissioned work to restrain the publication, exhibition, communication and distribution of such artistic works, subject to a written agreement. This provision will affect photographs or audio-visual works for private and domestic purpose as non-exclusive licensees.
5. The Act makes provisions with regards to take down notices for online content. Before this provision, service providers who hosted copyright content on their platforms relied on the Digital Millennium Copyright Act of the United States of America 1988, as well as the general provisions on licensing of content contained in the Old Act as the basis for the removal of infringement on digital platforms. It also lays down a procedure for takedown and re-instatement of the content and redress for a person dissatisfied with the determination or action of a service provider. Section 54, Part VII, Subsection 1-2 outlines that;
 - 54- (1) The owner of copyright in a work, in respect of which copyright has been infringed, may issue notice of the infringement to the relevant service provider requesting a take down or disable access to any infringing content or link to the content, hosted on its system or network.
 - (2) A notification under subsection (1), shall be in writing and may be transmitted electronically, or by any other means, to the service provider or his designated agent and shall include –
 - a. a physical or electronic signature of a person authorized to act on behalf of the owner of the right allegedly infringed;
 - b. identification of each other work claimed to have been infringed; and
 - c. identification of the Infringing material or the subject of infringing

activity that is to be removed or access to which is to be disabled, including information sufficient to enable the service provider to locate the material (216)

In addition, a service provider which fails to notify the subscriber responsible for the content for which a notice of infringement has been issued or take down infringing content from its platform will now be liable for breach of statutory duty and copyright infringement to the same extent as the actual infringer. The Act also contains rules for suspension of an account that repeatedly infringes the right of others, as well as the procedure for challenging an alleged consistent infringement. The Act does not constitute repeated infringement, but has given “The Commission” right to block or disable access to any content, link or website hosted on a system or network which it reasonably believes to infringe copyright as Section 56, subsection [1], [a-b] states that;

- [1] A service provider upon receiving repeated notification of infringements for a particular account, shall –
- a. promptly send a warning to the subscriber that has been identified, informing him that another notification will lead to suspension of the account and requiring the subscriber to confirm the receipt of the warning; and
 - b. after a second notification relating to the same account where no challenge is pending under subsection (2), shall suspend the account for a period of not less than one month. (217)

Intellectual Property Right and the Film Making Process

In film production, the transition from an idea to a completed script or screenplay involves multiple creative and legal steps, including commitments from writers, lead actors, and directors. Under Nigerian law, mere ideas, procedures, processes, methods, concepts, or data are not protected by copyright (Copyright Act 2022, sec. 3). According to Oguakwa, “Copyright is the entire bundle of rights which the legal system recognizes as inhering to the benefit of a creator of a physical artistic work” (109). Copyright permits subsequent expression of the same ideas even in similar manner so long as there is no copying from an original source without legal permission. Consequently, a detailed and fixed script is essential for copyright eligibility and to attract financing. Scripts may be based on original stories, novels, non-fiction, existing screenplays, or real-life events. Where the script adapts pre-existing material, producers must secure legal authorization from the original rights holders before production. Section 2(4) of the Act clarifies that a work does not lose copyright eligibility solely because its creation involved infringement of another work (Copyright Act 2022, sec. 2(4)). The Nigerian Copyright Act uses the term “Piracy” but does not define the term. For this purpose, piracy can be defined as “the use without permission of copyright protected works”. Ayoyemi Lawal-Arowolo concurs as he states that “Piracy relates to the act of violating the rights of the copyright owner by the unauthorized or illegal reproduction of his work and can prove damaging to the original creators, lessening his incentive to create new works” (284) The screenplay, whether original or adapted, constitutes intellectual property requiring acquisition or licensing of all underlying rights, including those of commissioned writers. Section 30 of the Act further mandates that copyright assignments or exclusive licenses must be in writing and clarifies that transfer of the material embodying the work does not automatically transfer copyright (Copyright Act 2022, sec. 30(1), (3), (8)).

This formal documentation, known as the “chain of title,” is critical for financing. Banks and investors require assurance that the producer lawfully controls all intellectual property rights to avoid potential injunctions from authors or rights holders whose works have been used without proper authorization or compensation.

Chain of Title Process in Film Production

S/N	PROCESS	INTERPRETATION
1	Original Concept/Idea (Story, Book, Real-life)	The source material for the film.
2	Script/Screenplay Creation (Original or Adaptation)	The intellectual property embodied in a fixed, protectable form.
3	Legal Clearance of Rights (Authorization from Authors of Adapted Material)	Obtaining authorization for pre-existing works used in adaptations.
4	Commissioned Writer's Rights (Script Writer Agreement)	Formal agreements with writers who develop the screenplay.
4	Assignment/License of IP (Written Contracts per Sec. 30, Copyright Act 2022)	Written transfer or license of rights in compliance with Section 30 of the Copyright Act 2022.
5	Producer Control of Rights (Complete Chain of Title)	Consolidation of all rights into a legally defensible “chain of title.”
6	Film Financing & Production (Banks & Investors Require Clear Legal Ownership)	Ensures financiers can support the project without risk of infringement claims.

Governmental Bodies Responsible for Copyright Claims and their Jurisdiction

The Nigerian Copyright Act, 2022, provides that copyright protection may be facilitated through registration with the Nigerian Copyright Commission (NCC), hereafter referred to as “the Commission,” established under Section 77 of the Act (Copyright Act 2022, sec. 77). Under the 2022 Act, the NCC is endowed with quasi-judicial powers to investigate and redress copyright infringement and to settle disputes not explicitly reserved for other authorities. As Ismail Adeyemi observes, “The NCC is saddled with the responsibility of adherence to the copyright law in Nigeria”.⁽¹⁾ The Commission's statutory functions include:

1. Oversight of all matters affecting copyright in Nigeria and monitoring the country's compliance with international copyright conventions, providing advice to the government where necessary.
 2. Advising on and regulating conditions for bilateral and multilateral copyright agreements, while informing the public on copyright-related matters.
 3. Investigating and addressing cases of copyright infringement and settling disputes not otherwise reserved under the Act.
 4. Maintaining an effective database of authors and their works, along with other responsibilities relating to copyright administration.
- Subject to the provisions of the Act, the Commission also has powers to:
- A. Prosecute, conduct, and defend any charge, complaint, or other proceedings arising under the Act before a court.
 - B. Levy reasonable fees for services and facilities provided by the Commission.
 - C. Regulate and implement measures to promote copyright protection.

D. Supervise the collective management of rights.

The NCC is a corporate body capable of suing and being sued in its name (Copyright Act 2022, sec. 77(2)(d)) and is overseen by a governing board established under Section 79. The administrative system of the Commission can be understood through two complementary perspectives: the institutional framework, which provides regulatory oversight, and the private machinery of collective rights management, whereby individual rights holders form collecting societies to administer, manage, and enforce their rights.



Figure 2: Institutional and Private Framework of the Nigerian Copyright Commission (NCC)

Piracy and its Effect on Box Office Success in Nigeria

Piracy is often claimed to be the principle reason why the industry is not currently thriving in the global creative economy. The Nigerian Copyright Act uses the term “Piracy” but does not define the term. For this purpose, piracy can be defined as “the use without permission of copyright protected works”. Ayoyemi Lawal-Arowolo concurs as he states that “Piracy relates to the act of violating the rights of the copyright owner by the unauthorized or illegal reproduction of his work and can prove damaging to the original creators, lessening his incentive to create new works” (679). Creators are sometimes hesitant about putting out their works for fear the work will be immediately pirated and their economic rights violated. The reproductions prohibited are often perpetrated on a commercial scale. It is routinely claimed that piracy negatively impacts both the financial interest of the copyright owner as well as the economy. In the opinion of Geoffrey Adonu, “Piracy is a formidable obstacle inhibiting the growth of Nollywood, and it

has been estimated that the film industry loses about 80 million naira every year to piracy” (103), therefore, piracy is said to undermine IP innovation, Economic growth and Employment. Piracy is generally considered a threat to the profits of owners of copyrighted materials. However, the impact of piracy as well as the consequence of addressing piracy may not affect all right holders equally in film production. A number of researches have concluded that piracy has total effect on box-office success in Nigeria, and the key enabler concerning infringement is believed to be accessibility. The process of accessing content via illegal sources was considered to be relatively easy and convenient whenever needed. In measuring the cannibalization and promotional impacts of piracy, Nkem Itanyi posits that; “The impact of piracy on box office is that it lowers the potential from the box office revenues by about 15% or 1.34 billion naira each year under study”(9) The study concludes that revenue would increase if piracy was removed entirely from the theatrical release window. Therefore, researchers conclude that the negative effect of piracy due to cannibalization dwarf any positive promotional benefits. All movies released in Nigeria will experience increased box-office revenue if piracy is eliminated from the film space.

Synopses of *Domitila*, *Oloture* and *Okafor's Law*

Domitilla (2021 remake) follows a narrative similar to the original 1996 film, centering on four women ensnared in the perilous world of prostitution, where escape often comes at the cost of their own lives or those of others. The story begins with Ekwutosi fleeing an arranged marriage on her wedding day and relocating to Lagos, seeking refuge with a friend while pursuing ambitions of becoming a fashion designer. In Lagos, Ekwutosi encounters Mama Vee, who introduces her to Domitilla, an underground network of sex work where clients satisfy their desires discreetly. Ekwutosi meets Fisayo and Promise, two other women compelled to serve as escorts to settle debts owed to Mama Vee. Unbeknownst to them, Mama Vee also operates a child trafficking and organ harvesting ring, activities under investigation by a police inspector whose efforts are undermined by a corrupt commissioner on Mama Vee's payroll. Upon discovering the full extent of Mama Vee's criminal operations and the imminent danger they face, the women collaborate with the inspector to dismantle her illicit enterprise, highlighting themes of survival, empowerment, and the pursuit of justice in a morally compromised environment.

Oloture is set in Lagos and follows the story of a young, naïve Nigerian journalist who goes undercover as a sex worker to expose the shadowy world of human trafficking. Inspired by a 2014 Premium Times investigation, the film depicts Oloture's immersion into a brutal environment dominated by ruthless pimps and traffickers. In the course of her investigation, she forms bonds with fellow prostitutes Blessing, Linda, and Beauty, who provide guidance and support amidst the pervasive exploitation and violence. Through her undercover assignment, Oloture uncovers a sprawling network of corruption and abuse. Her attempt to escape the criminal enterprise reveals the complexity of cross-border trafficking: girls are transported from Nigeria to Niger, moved through multiple vehicles, and smuggled to Europe using fraudulent documents. During this journey, Linda is murdered for possessing a phone, Beauty escapes but suffers further personal losses, and Oloture, still in disguise as Ehi, narrowly survives a violent ambush that kills all but her and another girl, Peju. The narrative also exposes the power dynamics within the trafficking network: Alero, the smuggling organizer, clashes with her superior Tony, while European contacts and local enforcers exert further pressure. Survivors

navigate betrayal, exploitation, and loss, with Beauty ultimately returning to prostitution under Chucks, a new middleman, after her family home is destroyed. Oloture's experience highlights the pervasive dangers, corruption, and systemic exploitation within human trafficking, underscoring themes of resilience, survival, and social critique.

Okafor's Law (2016), written, directed, and produced by Omoni Oboli, is a Nigerian romantic comedy-drama that explores the adage: "once a man has had a woman, he can have her again at any time." The film follows Chuks, nicknamed Terminator, a charismatic and confident womanizer, who is challenged by his friends to test the universality of this principle. He must attempt to rekindle relationships with three of his former secondary school girlfriends, Ifeoma (Ify), Tomi, and Ejiro, within a 21-day period. Chuks embarks on this quest, relying on his charm and belief in Okafor's Law, only to encounter unforeseen complications. The ex-girlfriends' lives have evolved significantly since their school days, presenting diverse personal, social, and professional circumstances that challenge Chuks' assumptions. The film examines themes of romantic pursuit, personal growth, and the tension between past and present identities, highlighting the comedic and dramatic complexities of attempting to apply an age-old notion to contemporary relationships.

COPYRIGHTS INFRINGEMENTS CASES IN *DOMITILLA*, *OLUTURE* AND *OKAFOR'S LAW*

Copyright Infringement Allegations on *Domitilla* Remake



Plate 1: Official cover photograph of the 1996 classic movie *Domitilla* in which Ann Njemanze played the lead role

In 2021, Nollywood actress Ann Njemanze filed a lawsuit against filmmaker Zeb Ejiro and two associated companies, Film One Entertainment and Film Trybe Media, alleging infringement of her registered trademark *Domitilla*. Njemanze, famed for portraying the lead character in the 1996 original *Domitilla*, argued that the remake used the film's title without her authorization and demanded ₦50 million in damages for trademark infringement.

A trademark, as a legally protected identifier whether a word, phrase, logo, or design serves to distinguish the goods or services of one party from another and constitutes an aspect of intellectual property law (Copyright Act 2022, sec. 77). While trademarks do not expire, their owners must maintain active use to retain protection. The central legal issue in this case concerned ownership of the film title and the appropriate allocation of rights and profits from the remake.



Plate 2: The official cover photograph of *Domitilla Remake* produced by Zeb Ejiro in partnership with Film One Entertainment and Omoni Oboli's Vision in 2021

The *Domitilla* remake was produced 24 years after the original, through a partnership among Zeb Ejiro Productions, Film One Entertainment, and Omoni Oboli's Vision. Ms. Njemanze had registered the *Domitilla* trademark in 2020, prior to the remake's release. She sought a court injunction restraining the defendants from using the mark or any deceptively similar identifiers. In response, Ejiro's legal team, led by Rockson Igelige, contended that the action was an attempt to obtain undue financial gain, noting that Njemanze's remuneration expectations exceeded the production budget for the remake.

The Federal High Court of Nigeria, under suit number FHC/L/CS/2305/2022, reviewed the claim and referred it to the Trademark Tribunal in Abuja. The Tribunal cancelled Njemanze's

trademark registration, ruling that she acted in bad faith. Chief Registrar Shafiu Adamu Yauri emphasized that the title *Domitilla* is the intellectual property of Zeb Ejoro, the original film producer, and that Njemanze's role as lead actress did not confer statutory rights to the film's title or scripts. The Tribunal further noted that the copyright of the original and subsequent remake scripts has been continuously owned and commercially exploited by Ejoro since 1996, including in videocassettes, compact discs, and digital formats. Consequently, the court held that Njemanze possesses no goodwill or independent reputation in the title *Domitilla* beyond her performance in the films (Copyright Act 2022, sec. 2, sec. 30).

This case underscores the distinction between performers' contributions and statutory intellectual property ownership in Nollywood, emphasizing that copyright in film scripts and titles remains vested in the producer unless explicitly transferred.

The Alleged Unauthorized Adaptation of *Oloture*

In 2021, investigative journalist Tobore Ovuorie filed a copyright infringement claim against Mo Abudu, CEO of EbonyLife Films, over the Netflix film *Oloture*. Ovuorie alleged that the film unlawfully adapted her 2014 Premium Times article, "Inside Nigeria's Ruthless Human Trafficking Mafia," in which she documented firsthand experiences of prostitution, political corruption, and human trafficking in Lagos.



Plate 3: The cover page of the article titled "Inside Nigeria's Ruthless Human Trafficking Mafia" written by investigative journalist Tobore Ovuorie, and published on Premium Times, on August 2014.

Ovuorie contended that *Oloture* drew heavily from her article and personal experiences, and she demanded adequate compensation for the unauthorized adaptation. EbonyLife Films, however, argued that the film was a work of fiction and that any similarities were coincidental or fell within the bounds of fair use. The producers claimed they offered Ovuorie 5% of the film's proceeds and credited her in the end credits (Copyright Act 2022, sec. 20.1a–h).

The case centered on the right of adaptation, which entitles the copyright owner of a literary work to authorize or prohibit derivative works. Adaptation involves transforming an existing work into a new medium while retaining core themes or messages. Copyright protection for a derivative work applies only to the new material contributed by the adapter, provided it meets the standards of originality, fixation, and nationality (Copyright Act 2022, sec. 9–13). The court evaluated whether the film's content sufficiently distinguished itself from Ovuorie's article and considered the similarities in themes, characters, and plot.



Plate 4: Official cover photo of the movie *Oloture* produced by Mo Abudu, CEO EbonyLife Films

The proceedings involved preliminary hearings, presentation of evidence, and analysis of the creative process behind both works. The court also weighed the social purpose of the film, as narratives addressing human trafficking carry public interest significance, and considered whether the similarities were permissible under fair dealing provisions, which allow limited use for private study, criticism, review, or reporting of current events, provided acknowledgment is given (Copyright Act 2022, sec. 20.1a–h). This case underscores the tension in Nollywood

between creative adaptation of real-life events and the statutory rights of original authors, highlighting the need for explicit permission and proper attribution when deriving new works from preexisting materials.

***Okafor's Law* Copyright Case and Judgment**

In September 2016, Canadian-based writer Jude Idada filed a copyright infringement suit against Omoni Oboli, alleging that her 2016 film *Okafor's Law* was based on a script he had written. The case was filed at the Federal High Court of Nigeria under suit number FHC/ABJ/CS/122/2017, pursuant to Section 103 of the Copyright Act 2022, which grants the Federal High Court exclusive jurisdiction over civil actions arising from the Act (Copyright Act 2022, sec. 103). Idada claimed that Oboli produced and distributed the film without authorization and that the story and concept belonged to him (Idada 2016). According to Idada, in 2014, he was approached by Oboli and her husband to write the script for the film. He provided ideas and requested a formal contract; however, repeated attempts to formalize the agreement were ignored. When he shared the script with a third party, Oboli allegedly proceeded to produce the film, retaining significant similarities to his draft, despite changing character names. Idada also alleged that Oboli had previously used his scripts, notably in *Being Mrs. Elliot*, without proper authorization (Idada 2016).



Plate 5: The official cover photograph of the movie *Okafor's Law* produced by Omoni Omoli's Vision

Oboli's defense focused on her independent creation of the film and the absence of formal registration for Idada's script. Copyright law in Nigeria protects the expression of ideas, not the ideas themselves. As Lord Farewell observes, "There is no copyright in an idea or ideas. A person may have a brilliant idea or concept for a story... but the production which is the rest of the communication of the idea to the author or the artist... is the copyright of the person who has clothed the idea in form" (Farewell 55). Therefore, the film's copyright resides in the actual script, whether prepared by Idada or Oboli. Under Nigerian law, no formal registration is required for copyright protection, though the Nigerian Copyright Commission (NCC) provides the Nigerian Copyright E-Registration System (NCeRS) for public notice (Copyright Act 2022, sec. 87). A search of NCeRS for *Okafor's Law* yielded "no record found," suggesting that neither party registered the work.

In July 2018, the Federal High Court ruled in favor of Oboli, permitting the film's commercial distribution. The court held that Idada failed to establish copyright infringement, as the film constituted the first fixed medium of expression of the alleged intellectual property (FHC/ABJ/CS/122/2017). The ruling underscored the importance of formal agreements and clear documentation in creative collaborations and highlighted the challenges of asserting intellectual property rights in Nigeria's informal film industry. The case also encouraged discussion on the protection of creators and the need for robust legal frameworks to support innovation and dispute resolution in Nollywood.

Comparative Legal Implications and Nature of Copyright Disputes in the above Cases

A comparative examination of *Domitilla*, *Oloture*, and *Okafor's Law* reveals how Nollywood films can become focal points for debates about intellectual property rights. While the narratives themselves explore diverse themes, from gendered exploitation and human trafficking to romantic relationships, the legal controversies surrounding them expose structural challenges within the Nigerian film industry. These cases collectively emphasize the need for clearer contractual practices, stronger awareness of intellectual property law, and more rigorous documentation of creative processes. As Nollywood continues to expand both domestically and internationally, addressing these issues will be essential for protecting the rights of creators while encouraging innovation and collaboration in the industry.

Despite their narrative differences, all three films became subjects of copyright-related legal disputes, highlighting persistent uncertainties regarding intellectual property rights in Nollywood. However, the legal questions raised in each case differ significantly in terms of the type of intellectual property claimed and the basis of the alleged infringement. The dispute surrounding *Domitilla* primarily involved trademark ownership. Actress Ann Njemanze, who played the titular role in the 1996 original film, claimed rights to the name "Domitilla" after registering it as a trademark in 2020. Her lawsuit against filmmaker Zeb Ejiro and the production companies responsible for the remake alleged unauthorized use of the title. The legal issue therefore centered not on copyright in the film's narrative or script but on trademark protection for the film's title. Ultimately, the Trademark Tribunal ruled that Njemanze had registered the mark in bad faith and affirmed that the intellectual property rights to the title remained with the original producer. This decision reinforced the legal distinction between performance rights and ownership of creative works in film production.

The controversy surrounding *Oloture* concerned the right of adaptation. Investigative journalist Tobore Ovuorie argued that the film drew substantially from her 2014 investigative article documenting human trafficking networks in Nigeria. Because her article constituted a literary work, the legal question was whether the film represented an unauthorized derivative work. The producers of the film maintained that *Oloture* was a fictional narrative inspired by general social realities rather than a direct adaptation of Ovuorie's work. The case therefore highlighted the complexities involved in translating real-life events into fictional storytelling, particularly when such narratives emerge from investigative journalism.

The case involving *Okafor's Law* centered on authorship and ownership of a screenplay. Writer Jude Idada claimed that the film's story derived from a script he had written after discussions with director Omoni Oboli. According to his account, he had shared ideas and drafts without a formal contractual agreement, after which the film was produced with substantial similarities to his work. The defense argued that the film was independently created and emphasized that copyright protects the expression of ideas rather than the ideas themselves. The Federal High Court ultimately ruled in favour of Oboli, concluding that the plaintiff had not sufficiently demonstrated that the film reproduced his copyrighted expression.

When considered collectively, these cases illustrate three distinct categories of intellectual property disputes within the film industry: trademark ownership (*Domitilla*), adaptation rights (*Oloture*), and authorship of creative expression (*Okafor's Law*). Each case underscores different vulnerabilities within Nollywood's production culture.

First, the *Domitilla* case reveals the challenges surrounding brand ownership in long-standing film franchises. As Nollywood increasingly revisits earlier works through remakes and sequels, questions of trademark control over titles and characters are likely to become more frequent. The ruling emphasizes that producers typically retain proprietary rights unless contractual agreements specify otherwise.

Second, the *Oloture* dispute highlights tensions between artistic storytelling and journalistic authorship. Films inspired by real events often draw upon investigative reports, raising ethical and legal concerns regarding attribution and compensation. This case underscores the importance of obtaining explicit permission when adapting identifiable literary works, even when the adaptation includes fictional elements.

Third, the *Okafor's Law* litigation reflects the broader issue of informal creative collaboration in Nollywood. The absence of written contracts and formal documentation often complicates the determination of authorship and ownership. The court's decision demonstrates how difficult it can be to establish infringement when the alleged original work has not been formally documented or when similarities exist primarily at the conceptual level.

The Import of Equity in Incentive Theory in These Cases

The **Incentive Theory** holds that creative works would be underproduced if creators could not derive economic benefit from them. Copyright protection therefore grants exclusive rights for a limited period to encourage investment in artistic and intellectual production. However, strict application of incentive theory alone may lead to unjust outcomes if individuals claim rights

without clear evidence of authorship or if protection becomes excessively restrictive. The **equity dimension** addresses this concern by ensuring that legal protection is granted only where it is deserved and supported by credible evidence. Courts thus attempt to strike a balance between: **Rewarding genuine creators**, and **Preventing opportunistic or speculative claims that could hinder creative industries**. The Nigerian courts' treatment of disputes surrounding *Oluture*, *Okafor's Law*, and *Domitila* reflects this balancing exercise.

The dispute over *Okafor's Law* involved allegations that the producers infringed the copyright of a screenplay allegedly written by Jude Idada. At an earlier stage, the court issued interim orders restraining the film's release and authorizing the seizure of copies pending determination of the case. However, in the final judgment delivered by the Federal High Court in Lagos, the court held that the plaintiff failed to establish credible evidence proving authorship and ownership of the screenplay. Consequently, the claim of copyright infringement was dismissed. From the perspective of equity-based incentive theory, the court's reasoning demonstrates two important principles: **Protection must be grounded in provable authorship**. Granting copyright protection without sufficient proof would undermine the integrity of the incentive system. If individuals could easily assert ownership of creative works without credible evidence, the result would be legal uncertainty that discourages film production. **Equity prevents unjust monopolization of creative ideas**. The court's decision ensured that exclusive rights were not awarded where authorship was uncertain. This reflects the equitable aspect of the theory, ensuring that the law protects legitimate creativity while avoiding unjust restrictions on artistic expression.

Thus, the judgment reinforced the notion that incentives in intellectual property law must be tied to demonstrable creative contribution.

The controversy surrounding *Oluture* involved claims that the film's storyline was derived from investigative work originally undertaken by a journalist. The dispute raised questions about the boundary between **inspiration from real events** and **copyright infringement**. Applying equity-based incentive theory to the dispute highlights several important considerations: **First**, intellectual property law protects **expression rather than ideas or factual narratives**. Real-life stories and investigative themes are generally not monopolized under copyright law. Protecting such underlying facts would hinder public discourse and creativity. **Second**, the incentive structure of copyright law encourages creative reinterpretation of social issues. Allowing filmmakers to adapt or dramatize real-world experiences promotes artistic innovation and public awareness. **Third**, equity requires that recognition be given where a specific creative expression is copied. However, if the film merely draws inspiration from general events or themes, granting exclusive rights would exceed the legitimate scope of copyright protection. Through this lens, the dispute demonstrates how courts must carefully balance the incentive to reward investigative work with the broader societal interest in creative freedom.

The *Domitila* case involved allegations that a later film production reproduced significant elements of the earlier Nollywood classic created by Zeb Ejiro. The dispute therefore centered on whether the later work constituted **substantial copying** of protected material. The equity-based incentive framework highlights several issues such as **Protection of original creative expression**, where substantial similarities exist between two works, the law must protect the

earlier creator's investment of effort, skill, and creativity. Without such protection, filmmakers would have little incentive to produce original content, **avoidance of overprotection**, at the same time, courts must determine whether similarities relate to general themes, such as social struggles or moral lessons or to specific protected expressions such as plot structure, dialogue, or character development and **Fair allocation of rewards**, equity requires that the benefits of creative labour accrue primarily to those who actually produce the intellectual work. Where infringement is established, remedies such as damages or injunctions serve both compensatory and deterrent purposes. In this context, the case demonstrates how copyright enforcement supports the incentive structure of the film industry while ensuring fairness between competing creators.

The examination of these three disputes reveals several broader implications for intellectual property law in Nigeria.

(a) Encouragement of Creative Investment

By protecting legitimate authorship and dismissing unsupported claims, courts reinforce confidence among filmmakers, writers, and investors. This legal certainty encourages continued growth in the entertainment sector.

(b) Prevention of Abuse of Copyright Claims.

Equity prevents individuals from exploiting intellectual property law to block creative projects without credible proof of ownership. This ensures that the incentive system remains fair and balanced.

(c) Promotion of Cultural and Artistic Development.

The Nollywood industry thrives on reinterpretation of social issues and cultural narratives. By limiting copyright protection to genuine creative expression, the courts allow filmmakers to explore shared cultural themes without fear of unjust litigation.

(d) Balancing Private Rights with Public Interest.

The theory underscores that intellectual property rights are not absolute. They exist primarily to encourage creativity for the benefit of society, and equitable principles ensure that the public interest is not sacrificed in the process.

The disputes relating to *Oloture*, *Okafor's Law*, and *Domitila* illustrate the practical application of **Equity in Incentive Theory of Intellectual Property** within the Nigerian legal system. In each case, the courts were required to balance the need to reward genuine creative effort with the equally important need to prevent unjust or unsupported claims to ownership. The judgments demonstrate that intellectual property protection in Nigeria is not merely a mechanism for granting exclusive rights but also a framework guided by fairness, evidence, and policy considerations. By integrating equitable principles into the incentive structure of copyright law, Nigerian courts contribute to a legal environment that both safeguards creators and promotes the continued development of the nation's creative industries.

Conclusion

The analysis of the three Nollywood copyright infringement cases, *Okafor's Law* vs. Jude Idada (2016), *Oloture* vs. Tobore Ovuorie (2019), and *Domitilla* vs. Ann Njemanze (2021), reveals a persistent lack of awareness of intellectual property (IP) rights within the Nigerian film industry. The research indicates that the prevalent practice of merely crediting authors is often mistaken for legal authorization, highlighting a misunderstanding of copyright law and its enforceable

consequences. Consistent with the Equity in Incentive Theory of Intellectual Property, copyright ensures that creators not only enjoy the fruits of their labor but also retain the right to exclude others from exploiting their works without permission or remuneration (Ruthingham 62). The Copyright Act 2022 emphasizes that authorization must be written and clearly state the terms of royalties. Collecting societies are established under the Act to enforce copyright on behalf of right holders and to facilitate simultaneous civil and criminal action against infringers (Copyright Act 2022, sec. 77). Wole Olayinka concurs with the above notion as he however states that; “Unless it is expressly stated in a contract that a person whose work is used in the making of a film has copyright in the film, such person's copyright only covers his work which was used in the making of the film and not the film itself” (3). The producer of the film still has copyright in the film so long as it fulfills other requirements for the copyright such as originality. Intellectual Property (IP) law is often justified through the **Incentive Theory**, which posits that creators are granted exclusive rights over their works in order to encourage creativity, innovation, and cultural production. However, the modern interpretation of this theory increasingly incorporates **equitable considerations**, emphasizing fairness between creators, collaborators, and the public. The **Equity in Incentive Theory of Intellectual Property** therefore suggests that legal protection should not only stimulate creativity but also ensure that rights are allocated in a manner that is just and proportionate. Within the Nigerian creative industry, several disputes relating to film production illustrate how courts balance incentives for creators with equitable considerations. The controversies surrounding the films **Oluture**, **Okafor's Law**, and **Domitila** provide useful examples of how Nigerian courts approach issues of authorship, ownership, and alleged infringement. By examining these cases through the lens of the equity-based incentive theory, it becomes possible to understand the broader policy rationale underlying judicial decisions in intellectual property disputes.

Recommendations

Based on the findings and conclusions, the study recommends:

- i. **Script and Screenplay Registration:** Playwrights should register scripts and screenplays with the Nigerian Copyright Commission (NCC) before production, while producers must secure authorization for all copyrighted materials used.
- ii. **Enhanced Legal Penalties:** The Copyright Act 2022 should be amended to include clearly defined penalties for infringement, including monetary fines and, where necessary, custodial sentences.
- iii. **Proper Documentation of Rights:** Transmissible rights of ownership should be formally documented for all artistic works to avoid disputes over adaptations or derivative works.
- iv. **Awareness and Training:** All artistic personnel should be trained on copyright regulations, including rights and exceptions relating to cinematography and audio-visual works.
- v. **Strengthening NCC Enforcement:** The NCC should be adequately resourced to proactively enforce copyright laws and safeguard intellectual property in Nigeria.
- vi. **Economic Incentives for Creators:** Contributors to collective artistic works should be fairly compensated for their creative and intellectual investment, motivating the continued production of original works.

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Sections cited:

Section 2(ii)(c); Section 2(i)(4); Section 3(i); Section 5(i)(a–b); Section 6(i)(a–c);

Section 14(i)(1–4); Section 20(a–h); Section 30(iii)(1,3,8); Section 54(vii)(1–2);
Section 56(vii)(1)(a–b); Section 87(1–7); Section 90(1–6); Section 103.

Filmography

Domitilla. Directed by Zeb Ejiro, performances by Ann Njemanze, Richard Mofe-Damijo, and Emeka Ossai, Zeb Ejiro Productions, 1996.

Okafor's Law. Directed by Omoni Oboli, performances by Omoni Oboli, Blossom Chukwujekwu, and Alexx Ekubo, Omoni Oboli's Vision, 2016.

Oloture. Directed by Kenneth Gyang, performances by Tina Mba, Beverly Naya, and Omowumi Dada, EbonyLife Films, 2019.